

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X SUMMONS

SIRCARLYLE ARNOLD,

Plaintiff,

Plaintiff designates Queens
County as the place of trial.

- against -

CITY OF NEW YORK, POLICE OFFICER THOMAS
MONTARIO, POLICE OFFICER CHIRSTOPHER
HARRIS, POLICE OFFICER ROBERT FALCONE,
POLICE OFFICER MATTHEW LOCASCIO,

Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Queens County and is against
the City of New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
September 06, 2021

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
14 Wall St., Ste 1603
New York, NY 10005
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DEFENDANTS' ADDRESS':

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church St.,
New York, NY 10038

POLICE OFFICER THOMAS MONTARIO
113th Precinct
167-02 Baisley Blvd, Jamaica, NY 11434

POLICE OFFICER CHIRSTOPHER HARRIS
113th Precinct
167-02 Baisley Blvd, Jamaica, NY 11434

POLICE OFFICER ROBERT FALCONE
113th Precinct
167-02 Baisley Blvd, Jamaica, NY 11434

POLICE OFFICER MATTHEW LOCASCIO
113th Precinct
167-02 Baisley Blvd, Jamaica, NY 11434

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

-----X

SIRCARLYLE ARNOLD

Plaintiff,

INDEX NO:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK, POLICE OFFICER THOMAS
MONTARIO, POLICE OFFICER CHIRSTOPHER
HARRIS, POLICE OFFICER ROBERT FALCONE,
POLICE OFFICER MATTHEW LOCASCIO,

Defendants.

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Plaintiff, SIRCARLYLE ARNOLD, by his attorneys LORD LAW GROUP PLLC, allege upon
knowledge as to themselves and their own actions, and upon information and belief as to all
other matters, as follows:

PRELIMINARY STATEMENT

1. In the aftermath of the police killings of George Floyd and Breonna Taylor, Americans and people around the world were horrified at the callousness and dangerous level of force utilized by those who were sworn to protect their citizens. We all saw Police Officer Derek Chauvin place a knee on the neck of George Floyd for nine minutes, intentionally killing him even though he was unarmed and not resisting.

2. Locally, leaders in NYC condemned the attack in Minnesota and vowed to institute changes in their local districts. Yet, when presented with the same conduct that Derek Chauvin showed to George Floyd, the City of New York, New York Police Department, and Queens District Attorney's Office failed to hold the offending Officer accountable.

3. Thus, SirCarlyle Arnold must file a lawsuit in the Courts to attempt to provide some semblance of justice and accountability for law enforcement.

JURISDICTION AND VENUE

4. Jurisdiction lies in the Supreme Court of New York, County of Queens, as all Defendants resided or were employed in the State of New York, and the amount in controversy exceeds the jurisdictional amounts of all lower courts.

5. Plaintiff complied with the requirements of New York General Municipal Law Section 50-H by serving a notice of claim on the City of New York dated March 28, 2021 for Plaintiff.

6. Plaintiff was deposed by the City of New York pursuant to 50-H on 07/14/2021.

7. The City of New York has not settled or adjusted this claim.

8. That all conditions and requirements precedent to the commencement of this action have been complied with.

9. Venue is proper under CPLR § 504 in the County of Queens it is the county where this cause of action arose.

PARTIES

10. SirCarlyle Arnold is at all times mentioned hereafter was, and is, a resident of New York State.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. Defendant City of New York can be sued in its own name. Defendant City of New York is authorized by law to maintain a police department—the NYPD—which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City of New York was at all times discussed herein the public employer of all named Defendants

12. Defendant NYPD Officer Thomas Montario is an uniformed members of the NYPD. Defendants Montario were at all times relevant and discussed herein acting under color of law; in the course and scope of their duties and functions as officers, agents, servants and employees of Defendant City of New York; and was acting for, and on behalf of, and with the power and authority vested in them by Defendant City of New York and the NYPD. He is sued in his individual capacity.

13. Defendant NYPD Officer Christopher Harris is an uniformed members of the NYPD. Defendants Montario were at all times relevant and discussed herein acting under color of law; in the course and scope of their duties and functions as officers, agents, servants and employees of Defendant City of New York; and was acting for, and on behalf of, and with the power and authority vested in them by Defendant City of New York and the NYPD. He is sued in his individual capacities.

14. Defendant NYPD Officer Robert Falcone is an uniformed members of the NYPD. Defendants Montario were at all times relevant and discussed herein acting under color of law; in the course and scope of their duties and functions as officers, agents, servants and employees of Defendant City of New York; and was acting for, and on behalf of, and with the power and authority vested in them by Defendant City of New York and the NYPD. He is sued in his individual capacities.

15. Defendant NYPD Officer Matthew Locascio is an uniformed members of the NYPD. Defendants Montario were at all times relevant and discussed herein acting under color of law; in the course and scope of their duties and functions as officers, agents, servants and employees of Defendant City of New York; and was acting for, and on behalf of, and with the

power and authority vested in them by Defendant City of New York and the NYPD. He is sued in his individual capacities.

16. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiff a non-delegable duty of care.

17. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

18. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

STATEMENT OF FACTS COMMON TO ALL CLAIMS

19. On January 02, 2021, SirCarlyle attended the funeral of a friend who passed.

20. During this funeral, SirCarlyle participated in a group ride to commemorate his friend's death. During this group ride, SirCarlyle and others did "wheelies" and other movements in the street to celebrate his friend's life.

21. At no time when SirCarlyle was riding his bike, did he approach or attempt to hit Officer Thomas Montario or any other officer.

22. However, Officer Thomas Montario aggressively approached SirCarlyle and viciously threw him to the ground – forcing him off the bike. This use of force was extreme and unnecessary.

23. While on the ground, Officer Montario, with other officers unnecessarily restraining SirCaryle, placed his knee on the back and neck of SirCarlyle. The other officers held SirCarlyle down and failed to interve and stop Officer Montario from using excessive force.

24. While a knee was placed on his neck, surrounding individuals yelled and screamed for Officer Montario to cease using excessive force and to stop placing his knee on his neck.

25. Despite initially hearing these pleas, Officer Montario failed to remove his knee from SirCarlyle's neck and back, though at no time was SirCarlyle resisting arrest.

26. SirCarlyle was eventually placed under arrest. All charges against him were dismissed.

DAMAGES

27. This action seeks damages on behalf of Plaintiff for emotional pain and suffering, along with the physical injuries, that Plaintiff was forced to endure as a consequence of Defendants' decidedly wrongful actions.

28. Plaintiff has suffered, and continues to suffer, severe and ongoing damages, specifically including, physical pain and injuries, serious psychological and emotional damage, loss of familial relationships, and loss of quality of life.

29. The acts and omissions of Defendants entitle Plaintiff to compensatory and punitive damages.

CLAIMS FOR RELIEF**Claim I: False Imprisonment***Against All Defendants Under State Law*

28. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

29. That on January 02, 2021, and at all times hereinafter mentioned and upon information and belief, DEFENDANTS, without justification and without probable cause, imprisoned the Plaintiff.

30. That the DEFENDANTS' acting under the color of the law, intentionally confined the Plaintiff against his will and said confinement was not privileged.

31. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

32. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

Claim II: Excessive Force*Against Defendants Officer Thomas Montario, Officer Christopher Harris, Officer Robert Falcone, Officer Matthew Locascio Under U.S.C. § 1983*

33. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

34. In detaining Plaintiff, DEFENDANTS used force.

35. The force used was unreasonable and excessive.

36. As a result of the unreasonable and excessive force, Plaintiff suffered injuries and substantial pain.

37. DEFENDANTS' use of force was a substantial factor in causing the harm to Plaintiff.

38. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

Claim III: Negligent and Intentional Infliction of Emotional Distress

Against Defendants City of New York Under New York State Law

39. Plaintiffs realleges the preceding paragraphs as if set forth here.

40. Defendants Officer Thomas Montario, who was acting within the scope of their employment with Defendant City of New York, intentionally and without justification detained and assaulted SirCarlyle while utilizing excessive force. Defendants acted recklessly and with utter disregard for the consequences of their actions, which caused Plaintiffs' severe emotional distress.

41. Defendants' actions exceeded all reasonable bounds of decency, were outrageous and shocking, and resulted in severe emotional distress, and other injuries, to Plaintiffs.

42. Defendants committed these tortious acts within the scope of their employment, and therefore Defendant City of New York, as their employer, is responsible for their tortious conduct under the doctrine of respondeat superior.

Claim IV: Negligence*Against All Defendants Under New York State Law*

43. Plaintiffs realleges the preceding paragraphs as if set forth here.

44. Defendants owed a special duty of care to Plaintiff, whom they injured and/or witnessed being injured by other NYPD Officers. Defendants violated this special duty by failing to intervene to prevent injury, and by failing to seek and/or provide medical aid.

45. NYPD Officers' negligent failure to intervene and seek and/or provide medical aid to Plaintiffs caused them further injury.

46. Defendants committed these tortious acts within the scope of their employment, and therefore Defendant City of New York, as their employer, is responsible for their tortious conduct under the doctrine of respondeat superior.

Claim V: Negligent Supervision, Retention, and Training*Against Defendant City of New York Under New York State Law*

47. Plaintiffs realleges the preceding paragraphs as if set forth here.

48. Defendant City of New York failed to use reasonable care in the training and supervision of the NYPD Officers who, negligently injured, and violated the constitutional rights of Plaintiff.

49. As a direct and proximate result of Defendant's negligence, Plaintiffs suffered serious bodily injury, emotional distress and mental anguish, costs, and expenses, and was otherwise damaged and injured.

Claim VI: Violations of the New York State Constitution*Against Defendant City of New York Under New York State Law*

50. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

51. By virtue of the aforementioned acts, the Individual Defendants are liable to Plaintiff for violating his right to due process under Article I § 6 of the New York State Constitution, and her right to be free of unreasonable and unlawful searches and seizures under Article I § 12 of the New York State Constitution.

52. Defendant City of New York is liable for these violations of the New York State Constitution under the principle of *respondeat superior*. nsequently, the individual officers and the City of New York are liable to Plaintiff for compensatory and punitive damages.

Claim VII: Prima Facie Tort

Against Defendant City of New York and Against Defendants Officer Thomas Montario, Officer Christopher Harris, Officer Robert Falcone, Officer Matthew Locascio Under New York State Law

53. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

54. Defendants intentionally inflicted harm, resulting in damages, without excuse or justification, by an act or. series of acts, excusing the foregoing claims, that were otherwise lawful.

55. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

Claim VIII: Assault & Battery

Against Defendant City of New York and Against Defendants Officer Thomas Montario, Officer Christopher Harris, Officer Robert Falcone, Officer Matthew Locascio Under New York State Law

56. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

57. That, on January 02, 2021 , Defendants were acting within the scope of their employment with the Defendant, the City of New York.

58. That, on January 02, 2021 Defendants committed an assault and battery knowingly, intentionally, and willfully against Plaintiff.

59. That, on January 02, 2021 Defendants who committed the aforementioned assault and battery upon Plaintiff were acting within the scope of their employment with the City of New York.

60. That, on January 02, 2021 , the assault and battery on Plaintiff was without probable cause and was not the result of an appropriate arrest.

61. By reason of the foregoing, Defendants are liable to Plaintiff for damages.

Claim IX: Failure To Intervene

Against Defendants Officer Thomas Montario, Officer Christopher Harris, Officer Robert Falcone, Officer Matthew Locascio Under U.S.C. § 1983

62. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

63. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

64. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

Claim X: Malicious Prosecution

Against Defendant City of New York and Defendant Officer Thomas Montario Under New York State Law

65. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

66. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

67. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

68. DEFENDANTS commenced this criminal action out of malice.

69. The criminal action against Plaintiff has terminated in his favor.

70. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

71. That Plaintiff was conscious of the confinement.

72. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

73. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

74. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

75. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

Claim XI: Violations of the Right to a Fair Prosecution and Due Process of Law
Against Defendant Officer Thomas Montario Under New York State Law U.S.C. § 1983

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

77. That DEFENDANTS falsely stated under penalty of perjury, and then forward this information to the Queens County District Attorney's Office ("QCDA"), information made to give the misleading and false impression that the, *inter alia*, arrest and detainment and prosecution of Plaintiff was legally justified.

78. That the aforementioned statements by the DEFENDANT, and actions by the DEFENDANT, consisted of fabricated and falsified information was utilized and relied upon by the Queens County District Attorney's Office, used to secure an indictment, and utilized at trial.

79. Furthermore, DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

80. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

81. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

82. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs demand the following relief against Defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court deem appropriate and equitable.

DATED: this 6th Day of September 2021

New York, New York

Yours, etc.

Lord Law Group PLLC



Masai I. Lord
Attorneys for Plaintiff
SIRCARLYLE ARNOLD
14 Wall St., Ste 1603
New York, NY 10005

Counsel for Plaintiff SirCarlyle Arnold

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD LAW GROUP PLLC, attorneys of record for plaintiff *SIRCARLYLE ARNOLD*. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
September 06, 2021



Masai I. Lord
Counsel for Plaintiff